

Parvez v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 September 2014 · Criminal Misc. Writ Petition No. 15887 of 2014 · **FIR quash refused; CrPC 41/41-A directed if arrest made; compounding left to Supply Code 2005.**

HEADNOTE

An FIR under ss.135/138 of the Electricity Act, 2003 that discloses a cognizable offence is not quashed. If arrest is to be made and the offence cannot attract a sentence exceeding seven years, the police must follow CrPC ss.41(1)(b) and 41-A. If the offence is compoundable, compounding is to be sought under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Parvez petitioned the Allahabad High Court to quash an FIR dated 17 August 2014, Case Crime No. 240 of 2014, registered at Police Station Behat, District Saharanpur, under sections 135/138 of the Electricity Act, 2003. He had not been arrested. Counsel argued that the alleged offence could not attract a sentence of more than seven years, so arrest should not be mechanical, and that the offence was compoundable. The A.G.A. appeared for the State; counsel for opposite party no. 4 was present.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

quashing of theft FIR; arrest and compounding

HOLDING

An FIR under sections 135/138 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest has not yet been made and the offence cannot entail a sentence of more than seven years, any arrest must comply with section 41(1)(b) read with section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Applied where a s.135/138 FIR was left standing: arrest, if at all, must follow CrPC 41/41-A, and compounding is for the Supply Code 2005, not the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135/138 OFFENCE WAS IN FACT COMPOUNDABLE ON THESE FACTS

Court said only that if the offence is compoundable, the petitioner may seek the Supply Code 2005 remedy. ¶ 1